

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

JAMES MORSE,

Plaintiff,

Against

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT; POLICE OFFICER
M. ROSARIO, OFFICER ID NUMBER 962754;
SERGEANT HAQUE, SHIELD NO. 1052; POLICE
OFFICER SHAMA, SHIELD NO. 21279,
POLICE OFFICER CRUZ, SHIELD NO. 23637;
P.O. COPELAND, SHIELD NO. 27062; POLICE
OFFICER BROCHHAUSEN, SHIELD NO. 18783
and POLICE OFFICER PACUH, SHIELD 26746,
ALL OF THE 25TH PRECINCT,

Defendants,

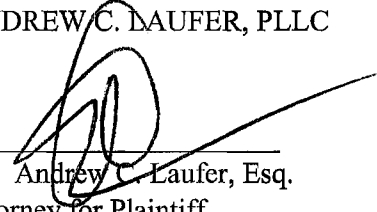
To the above-named defendants:

YOU ARE HEREBY SUMMONED, to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York, and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue is the place of incident.

DATED: New York, New York
December 2, 2022

LAW OFFICE OF
ANDREW C. LAUFER, PLLC



By: Andrew C. Laufer, Esq.
Attorney for Plaintiff

JAMES MORSE
264 W. 40th Street, Suite 604
New York, NY 10018
212-422-1020

Defendant's Address

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPT.
C/O THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

POLICE OFFICER M. ROSARIO,
OFFICER ID NUMBER 962754
Police Officer of the 25th Precinct

SERGEANT HAQUE
SHIELD NO. 1052
Police Officer of the 25th Precinct

POLICE OFFICER SHAMA
SHIELD NO. 21279
Police officer of the 25th Precinct

POLICE OFFICER CRUZ
SHIELD NO. 23637
Police officer of the 25th Precinct

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SHIELD NO. 27062
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SHIELD NO. 18783
Police officer of the 25th Precinct

POLICE OFFICER PACUH
SHIELD 26746
Police officer of the 25th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JAMES MORSE,

Index No.

Plaintiff,

VERIFIED COMPLAINT

Against

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT; POLICE OFFICER
M. ROSARIO, OFFICER ID NUMBER 962754;
SERGEANT HAQUE, SHIELD NO. 1052; POLICE
OFFICER SHAMA, SHIELD NO. 21279,
POLICE OFFICER CRUZ, SHIELD NO. 23637;
P.O. COPELAND, SHIELD NO. 27062; POLICE
OFFICER BROCHHAUSEN, SHIELD NO. 18783
and POLICE OFFICER PACUH, SHIELD 26746,
ALL OF THE 25TH PRECINCT,

Defendants.

Plaintiff, by and through his attorneys, Law Office of Andrew C. Laufer, PLLC complaining of
the defendants herein, upon information and belief, respectfully shows to this court, and alleges as
follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. The claim arose on or about April 24, 2022 at approximately 5:00 P.M. at or around the intersection of East 125th Street and First Avenue, New York, NY. At the aforesaid time and place, all of the above-mentioned NYPD officers of the 25th Precinct seized claimant without probable cause or reasonable suspicion to believe that claimant committed or was about to commit a crime or criminal violation. The officers then proceeded to give plaintiff a traffic ticket, used physical force against claimant by tackling him to the ground that was unnecessary and unjustified. The officers then searched plaintiff without plaintiff's consent and without reasonable suspicion, probable cause or other justification. The officers also forcibly handcuffed and arrested plaintiff and thereafter kept him imprisoned at various locations, including a police precinct and Central Booking, without a warrant and without probable cause. On or about April

24, 2022, the officers also caused plaintiff to be maliciously prosecuted, causing him to be charged with crimes of which he was innocent, and of which the officers knew they would not prevail at trial because the charges were false. Plaintiff was incarcerated for a period of approximately 24 hours. Thereafter, on or about April 25, 2022 the plaintiff was notified that the New York County District Attorney's Office has declined to prosecute charges against him. It is also alleged that the above-mentioned police officers are liable for failure to intervene to prevent or stop the illegal actions of the above-mentioned officers.

3. That an Examination of the plaintiff, then claimant, was held by the defendants on November 30, 2022 pursuant to Municipal law 50H within ninety (90) days after filing of the aforementioned Notice of Claim.

4. More than thirty (30) days have elapsed since the service of said Notice of Claim upon defendant, THE CITY OF NEW YORK and defendant, NEW YORK CITY POLICE DEPARTMENT, has failed, neglected and/or refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

5. This action has been commenced within one year and ninety (90) days after the within cause of action arose including, but not limited to, any equitable tolling of the statutory time period.

6. That at all times hereinafter mentioned defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

7. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

8. That at all times hereinafter mentioned, POLICE OFFICER M. ROSARIO, OFFICER ID NUMBER 962754; SERGEANT HAQUE, SHIELD NO. 1052; POLICE OFFICER SHAMA, SHIELD NO. 21279; POLICE OFFICER CRUZ, SHIELD NO. 23637; P.O. COPELAND, SHIELD NO. 27062; POLICE OFFICER BROCHHAUSEN, SHIELD NO. 18783; and POLICE OFFICER PACUH, SHIELD 26746; ALL OF THE 25TH PRECINCT, were and still are employed with defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

9. That at all times hereinafter mentioned, POLICE OFFICER M. ROSARIO, OFFICER ID NUMBER 962754; SERGEANT HAQUE, SHIELD NO. 1052; POLICE OFFICER SHAMA, SHIELD NO. 21279; POLICE OFFICER CRUZ, SHIELD NO. 23637; P.O. COPELAND, SHIELD NO. 27062; POLICE OFFICER BROCHHAUSEN, SHIELD NO. 18783; and POLICE OFFICER PACUH, SHIELD 26746; ALL OF THE 25TH PRECINCT, were acting within the scope and course of their employment with the City of New York and New York City Police Department, and under the color of State Law. That at all times hereinafter mentioned, POLICE OFFICER M. ROSARIO, OFFICER ID NUMBER 962754; SERGEANT HAQUE, SHIELD NO. 1052; POLICE OFFICER SHAMA, SHIELD NO. 21279; POLICE OFFICER CRUZ, SHIELD NO. 23637; P.O. COPELAND, SHIELD NO. 27062; POLICE OFFICER BROCHHAUSEN, SHIELD NO. 18783; and POLICE OFFICER PACUH, SHIELD 26746; ALL OF THE 25TH PRECINCT, were acting in their individual and official capacity as employees of defendants, THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYCPD).

10. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law and Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS COMMON TO ALL CAUSES OF ACTION

11. On or about April 24, 2022 at approximately 5:00 P.M., plaintiff, JAMES MORSE, was lawfully at or around the intersection of East 125th Street and First Avenue, New York, NY.

12. At said time and place and without probable cause, all of the above-mentioned NYPD officers of the 25th Precinct seized claimant tackling him to the ground without probable cause or reasonable suspicion to believe that claimant committed or was about to commit a crime or criminal violation. The officers then proceeded to give plaintiff a traffic ticket, used physical force against plaintiff that was unnecessary and unjustified. The officers then searched plaintiff and without plaintiff's consent and without reasonable suspicion, probable cause or other justification, the officers also forcibly handcuffed and arrested claimant and thereafter kept him imprisoned at various locations, including a police precinct and Central Booking, without a warrant and without probable cause. Plaintiff was maliciously prosecuted, causing him to be

charged with crimes of which he was innocent, and of which the officers knew they would not prevail at trial because the charges were false. Plaintiff was incarcerated for a period of approximately 5 P.M. to 2:45 A.M.

13. That on or about the above date and at the above location, without probable cause while Plaintiff was out of his vehicle filming Police activity, he was told to stop filming. Plaintiff responded that it was his right to do so. Plaintiff was then tackled to the ground by the officers sustaining personal injuries.

14. Plaintiff was then arrested and taken to various locations, including a police precinct and Central Booking, without a warrant and without probable cause.

15. That on or about April 24, 2022, the officers also caused plaintiff to be maliciously prosecuted, causing him to be charged with crimes of which he was innocent, and of which the officers knew they would not prevail at trial because the charges were false. Plaintiff was incarcerated for approximately 24 hours.

16 Thereafter, on or about April 25, 2022 the plaintiff was notified that the New York County District Attorney's Office has declined to prosecute charges against him. It is also alleged that the above-mentioned police officers are liable for failure to intervene to prevent or stop the illegal actions of the above-mentioned officers.

17. The individual defendants, POLICE OFFICER M. ROSARIO, OFFICER ID NUMBER 962754; SERGEANT HAQUE, SHIELD NO. 1052; POLICE OFFICER SHAMA, SHIELD NO. 21279; POLICE OFFICER CRUZ, SHIELD NO. 23637; P.O. COPELAND, SHIELD NO. 27062; POLICE OFFICER BROCHHAUSEN, SHIELD NO. 18783; and POLICE OFFICER PACUH, SHIELD 26746, all of the 25th Precinct, under color of State law, subjected plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including excessive use of force; (b) freedom from arrest without probable cause (c) freedom

from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against him by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileged and immunities under the law.

FIRST CAUSE OF ACTION FOR VIOLATIONS OF PLAINTIFF'S CONSTITUTION RIGHTS UNDER THE FIRST, FOURTH, FIFTH, SIXTH, EIGHTH, FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION, NEW YORK CITY AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST AND IMPRISONMENT

18. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

19. That on or about April 24, 2022 at approximately 5 P.M. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to POLICE OFFICER M. ROSARIO, OFFICER ID NUMBER 962754; SERGEANT HAQUE, SHIELD NO. 1052; POLICE OFFICER SHAMA, SHIELD NO. 21279; POLICE OFFICER CRUZ, SHIELD NO. 23637; P.O. COPELAND, SHIELD NO. 27062; POLICE OFFICER BROCHHAUSEN, SHIELD NO. 18783; and POLICE OFFICER PACUH, SHIELD 26746, all of the 25th Precinct, wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.

20. That on or about April 24, 2022 at approximately 5 P.M. defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to POLICE OFFICER M. ROSARIO, OFFICER ID NUMBER 962754; SERGEANT HAQUE, SHIELD NO. 1052; POLICE OFFICER SHAMA, SHIELD NO. 21279; POLICE OFFICER CRUZ, SHIELD NO. 23637; P.O. COPELAND, SHIELD NO. 27062; POLICE OFFICER BROCHHAUSEN, SHIELD NO. 18783; and POLICE OFFICER PACUH, SHIELD 26746, all of the 25th Precinct, jointly and severally in their capacity as police officers, wrongfully handcuffed, and seized the plaintiff about his person, causing him physical pain and mental suffering. At no time did defendants have legal cause to handcuff, seize or touch plaintiff or did plaintiff consent to this illegal touching nor was privileged by law.

21. That on or about April 24, 022 defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrest plaintiff, restrain him and his liberty.
22. That the aforesaid arrest, detention and imprisonment kept him at various locations, including a police precinct and Central Booking.
23. The unlawful conduct of defendants was motivated and instigated by other than lawful reasons and without probable cause.
24. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the defendant police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.
25. That the CITY, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.
26. As a result of the aforesaid actions, including the arrest and imprisonment of plaintiff without probable cause, defendants deprived plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.
27. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.
28. As a result of the forementioned actions, defendants deprived plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.
29. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for said deliberate indifference to plaintiff's rights.
30. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained and was greatly injured in his credit and

circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

31. The aforementioned described constitutional violations are all actionable under ad pursuant to 42 U.S.C. Section 1983, 1988 and New York State Law.

SECOND CAUSE OF ACTION FOR VIOLATIONS OF PLAINTIFF'S RIGHTS UNDER THE FOURTH, FIFTH, SIXTH, EIGHTH, FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION, NEW YORK CITY AND NEW YORK STATE LAW PREDICATED UPON ASSAULT, BATTERY, AND USE OF EXCESSIVE FORCE UPON PLAINTIFF

32. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

33. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge consent and cooperation and under the supervisory authority of defendants CITY and the NEW YORK CITY POLICE DEPARTMENT.

34. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or alleged acts to continued.

35. Defendants arrested and detained plaintiff in the absence of any evidence of criminal wrongdoing notwithstanding their knowledge that said arrest and detention would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

36. At all times mentioned herein said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

37. On or about April 24, 2022, defendants did seize, search and tackle to the ground the person of the plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the

plaintiff during the arrest process in an unlawful and excessive manner.

38. The plaintiff was falsely arrested, unlawfully detained and suffered great injury without the defendants processing probable cause to do so.

39. The above actions of defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from illegal search and seizure
- b. Freedom from arrest
- c. Freedom from unlawful imprisonment.

40. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights.

41. Defendant CITY has grossly and negligently failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when the police officers are not in possession of a court authorized arrest warrant and where an individual especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

42. The direct proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a psychological and physical nature. He was forced to endure pain and suffering to his detriment.

THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

43. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

44. That the aforesaid action and resulting injuries to plaintiff were due to the negligence of the CITY in the hiring, retention and training of its employees, including POLICE OFFICER M. ROSARIO, OFFICER ID NUMBER 962754; SERGEANT HAQUE, SHIELD NO. 1052; POLICE OFFICER SHAMA, SHIELD NO. 21279; POLICE OFFICER CRUZ, SHIELD NO. 23637; P.O. COPELAND, SHIELD NO. 27062; POLICE OFFICER BROCHHAUSEN, SHIELD NO. 18783; and POLICE OFFICER

PACUH, SHIELD 26746, all of the 25th Precinct, causing the plaintiff to be falsely arrested and imprisoned without justifiable reason or ground thereof and in all ways being grossly negligent and engaging in wanton and reckless conduct.

FOURTH CAUSE OF ACTION – MONELL VIOLATION

45. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

46. That plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and the State of New York, and his rights pursuant to 42 USC sec. 1983 by those who under color of a statute or regulation of a state, caused plaintiff to be so deprived.

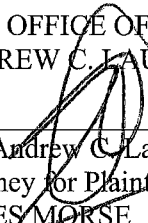
47. That the aforesaid actions by the defendants, their agents, servants and/or employees were done pursuant to an official municipal policy or custom of the city, which policy involved the deliberate indifference to the health, safety, and welfare of the plaintiff, in failing to properly discipline the defendants and for the purpose of thwarting the fair administration of justice in violation of the 4th and 5th Amendments to the United States Constitution.

48. That defendants herein, their agents, servants and/or employees motivated in part by racial and/or ethnic animus, conspired to deprive plaintiff of his federal civil and constitution rights, in violation of 42 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for plaintiff's pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees and together with costs and disbursements.

DATED: New York, New York
December 2, 2022

LAW OFFICE OF
ANDREW C. LAUFER, PLLC

By:  Andrew C. Laufer, Esq.
Attorney for Plaintiff
JAMES MORSE
264 West 40th Street, Suite 604
New York, NY 10018
212-422-1020

ATTORNEY'S VERIFICATION

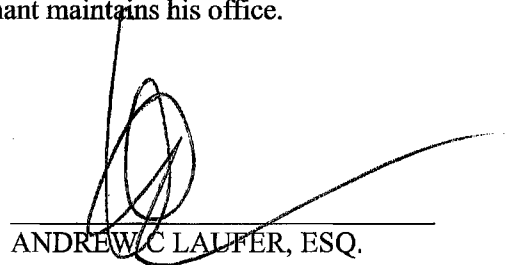
ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that same is true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

2. That the source of my information and knowledge are records and investigation reports maintained within the file.

3. That the reason this verification is made by your affirmant, and not by the plaintiff is that plaintiff resides outside the County in which your affirmant maintains his office.

DATED: New York, New York
December 2, 2022



ANDREW C LAUFER, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index:

Year:

JAMES MORSE,

Plaintiff,

-against-

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OFFICER CRUZ, SHIELD NO. 23637, P.O. COPELAND,
SHIED NO. 27062, POLICE OFFICER BROCHHAUSEN, SHIELD
NO. 18783 and POLICE OFFICER PACUH, SHIELD NO. 26746, Defendants,
ALL OF THE 25TH PRECINCT

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer